# Urla Industrial Association …. ... vs Chhattisgarh Electricity Regulatory ... on 16 November, 2010

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)
Appeal No. 27 of 2010

Dated: 16th November, 2010

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

Urla Industrial Association .... Appellant (s)
Versus
Chhattisgarh Electricity Regulatory Commission & Ors. ... Respondent (s)

Counsel for the Appellant (s) : Mr. Sanjay Sen, Mr. Achintya Dvivedi
Ms. Surbhi Sharma & Ms. Shikha Ohri

Counsel for the Respondent(s) : Mr. M.G. Ramachandran,
Ms. Swapna Seshadri for R.1

Ms. Suparna Srivastava with
Mr. A. Bhatnagar (Rep.) for R.2

ORDER

The learned counsel for the Appellant, without going into the merits of the matter requests this Tribunal that the Appellant may be given liberty to approach the State Commission at the appropriate stage for modification of the quantum of parallel operation charges. With this liberty he seeks permission of this Court to withdraw the Appeal.

We have heard the learned counsel for the parties. It is noticed in the Order of the State Commission that "the billing of parallel operation charges is ordered and it shall be effective from 01.012009 and shall remain in effect till it is revised by the Commission".

In view of the said observation, the Appellant is permitted to approach the Commission at the appropriate stage in respect of the quantum of parallel operation charges.

With these observations, the Appeal is dismissed as withdrawn.

(Rakesh Nath) (Justice M. Karpaga Vinayagam)
Technical Member Chairperson
ts/ksm